

**PRIVILEGED AND CONFIDENTIAL ATTORNEY-CLIENT WORK PRODUCT
FOR INTERNAL REVIEW AND DISCUSSION PURPOSES ONLY**

MyTabs, LLC WEBSITE / APP PRIVACY POLICY

Welcome to the MyTabs website! We are excited that you’re here.

Your access and use of the MyTabs website, <https://www.mytabs.app/> (the “**Website**”) and/or the TABS App (the “**App**”) are subject to this Privacy Policy and the [Individual User Terms and Conditions](#) (the “**Use Terms**”). This Privacy Policy forms an integral part of the Use Terms.

The Services (as defined in the Use Terms) We provide have personalization, understanding and anticipating customer behavior as fundamental parts of satisfying customer expectations and needs. When we implement and maintain data-driven functionalities, we always keep data protection principles in mind. To that end, we strive to leverage the latest data security standards, improve our awareness of privacy matters, and comply with the EU General Data Protection Regulation (“**GDPR**”) and other applicable privacy laws. We welcome any questions, thoughts and feedback on our privacy and data protection practices, and refer You to the content below for more detailed information about Your rights.

Capitalized terms that are not defined in this Privacy Policy or the Use Terms shall have the meaning ascribed to them under the GDPR.

IMPORTANT NOTICE: This Privacy Policy and the relationships falling under its effect are regulated by the GDPR and other applicable data privacy protection laws. Existing laws and requirements for processing Personal Data are subject to change. Should this be the case, We will publish a new version of the Privacy Policy addressing such changes on Our Website. If We make substantial changes to the Privacy Policy or the Website that affect your data privacy rights, We will notify You by email or display information on the Website and ask You to read it. We will notify You in advance, and, if You continue to Use the Services after the changes come into effect, You shall be deemed to have agreed to and accepted the updated Privacy Policy.

ABOUT MYTABS, LLC

We are the controller of Your Personal Data processed through the Website. This means that We determine the purposes and means of Personal Data processing.

ABOUT YOU

When You visit the Website, You become our user (“**User**”). We divide Our Users into categories so You can easily find details about the processing of Your Personal Data. Please be aware that You can fall into several categories of User(s), depending on Your actions in interacting with Us.

Data Subject Type	Description
Visitor	User who visits the Website
Potential Client	User who fills out the “Let’s Chat” form
Client	User who has an Account with Us

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Support Requester	User who fills out the Website's " Let's Chat " form and selects "Support" from the drop-down menu
Listing Member	User who has a paid Listing Membership Account with Us
Newsletter Subscriber	User who subscribes to the newsletter via "Subscribe to News" form.
Feedback Provider	User who provides feedback about the Website or the App to us directly or via a Third-Party Product.
Please note: We do not knowingly process the Personal Data of Users under the age of sixteen (16). If You are such a User or You are a legal representative of such a User, please contact Us at tabs@mytabs.app	

LAWFUL BASIS FOR PROCESSING PERSONAL DATA

To process Your Personal Data, we rely on the following lawful bases:

1. **Legitimate interest:** For processing Personal Data as necessary for the development of our services, taking into consideration Your interests, rights, and expectations;
2. **Fulfilling legal obligations / Compliance:** For processing Personal Data as required by applicable laws (for example, to comply with tax or know-your-customer and/or anti-money laundering (KYC/AML) regulations, or if requested by a law enforcement agency, court, supervisory authority, or government body;
3. **Contract performance:** For processing Personal Data as necessary for negotiating, concluding, and performing under a contract (mainly, the Use Terms) with You;
4. **Consent:** For additional processing of Personal Data for other purposes.

Personal Data is only kept for as long as necessary to achieve the purpose for which it was collected, after which it is deleted or anonymized.

DATA WE COLLECT FROM YOU

1. **If You are a Visitor:** When You visit Our Website, some data may be collected automatically.

Data Collected	Description	Reasons for Processing	Lawful Basis
Necessary cookies	Information that is necessary for the operation of the Website	Improving User experience of the Website	Contract Performance
Statistics cookies	Information that helps Us understand how You interact with the Website by	Improvement of the Website and analysis of	Consent

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	collecting and reporting information anonymously	statistics for other purposes	
Marketing cookies	Marketing information used to match relevant advertising to You	Marketing	Consent
Pixel technology	Information that is needed to collect metrics on marketing campaigns: opening rate, time, conversion, etc.	Analytics	Consent
Data Storage / Retention			
Cookies		Stored/retained as indicated in Our Cookie Policy	
Pixel technology		Stored/retained as indicated in Our Cookie Policy	

- 2. If You are a Potential Client:** We may ask You for some information about You or Your company to contact You and offer You a Listing Member subscription.

Data Collected	Reasons for Processing	Lawful Basis
Full name	To personalize Our response to Your request	Legitimate interest
Email	To respond to Your request	Contract performance
Company name	To personalize Our response to Your request	Legitimate interest
Number of subscriptions	To send You relevant offer	Contract performance
Mobile Device Management System	To send You relevant offer	Contract performance
Data Storage / Retention		
If no contract concluded: We store the data during communication and 1 year after the date of submission of the completed "Let's Chat" form.		
If a contract between MyTabs and You is concluded: We store the data during Your use of the App and 6 years after the termination of the contract		

- 3. If You are a Client or Listing Member:** To make purchases via the App and/or the Website, or to activate your Listing Member subscription(s), You must provide us with Your payment details. We also keep the Your payment history, as this is a legal requirement, and We cannot delete this information until the filing of the annual accounts expires.

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Data Collected	Reasons for Processing	Lawful Basis
Account information - E-mail address - Credit card information and cardholder name - Your country of location - Subscription type (Listing Members only) - Customer ID	Confirming the payment for compliance with applicable law	Fulfilling Legal obligations / Compliance
	For Listing Members: Confirming the payment for providing You with the subscription to the App For Clients: Providing the ability to make purchases in or through the App (if You are a Client)	Contract Performance
Email hash	To analyze Your actions on the Website to understand You better and improve the Website.	Consent
Data Storage / Retention		
We store the data during your use of the App and 6 years after the termination of the contract between You and MyTabs.		
We store email hash for 2 years.		

If you have a subscription activation code, you can redeem it on our Website or via the App on signing up.

Data Collected	Reasons for Processing	Lawful Basis
Subscription Information - E-mail address - Name - Subscription type - Billing email (when applicable) - Customer ID	Confirming the transaction for compliance with the applicable law	Fulfilling Legal obligations / Compliance
	Confirming the transaction for providing You with the subscription to the App	Contract Performance
Data Storage / Retention		
We store the data during your use of the App and 6 years after the termination of the contract between You and MyTabs.		
We store email hash for 2 years.		

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- 4. If You are a Support Requestor:** When You address your request for support on the Website, we collect some information to help You.

Data Collected	Reasons for Processing	Lawful Basis
Email Name Test of the request Attached Files (if any) Device type	To respond to Your request	Contract Performance
Privacy requests You can contact Us via email at tabs@mytabs.app or using the “ Let’s Chat ” live feature to assist with Your data privacy requests.		
Data Storage / Retention		
We store the data during communication and for 6 years after the last communication on the support ticket.		

- 5. If You are a Listing Member:**

Data Collected	Reasons for Processing	Lawful Basis
Your information: • full name • user name • e-mail address • password	Creating the Listing Member’s Account	Contract Performance
Company information: • company name • company website • country of residence • business address • currency • time zone	Creating the Listing Member’s Account	Contract Performance
Promotional information: • company website • type of operational system	Creating the Listing Member’s Account	Contract Performance

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links to social network(s) accounts		
Data Storage / Retention		
We store the data during the existence of the Listing Member's Account and 6 years after that.		

- 6. If You are a Newsletter Subscriber:** We may collect and use Personal Data for marketing purposes. Subject to legal requirements, We may send You emails and other types of notifications regarding matters You might find interesting or offers related to the Services if you choose to subscribe to such information. This data is processed for as long as the subscription continues. At any time, You can choose to opt-out from receiving further emails by using the unsubscribe button found in each newsletter or press release.

Data Collected	Reasons for Processing	Lawful Basis
E-mail address	To send You recommendations, tips, news about the Services and news about MyTabs	Consent
E-mail address	To inform You about major events and special offers for other products of MyTabs and its Listing Members	Legitimate interest
Data Storage / Retention		
We store the data until You unsubscribe from the mailing.		
We store the data during the performance of Our contract with You, or until You object to the processing.		

- 7. If You are a Feedback Provider:** When you submit your feedback about the Services to Us directly or via Third-Party Products, we process Personal Data in Your feedback, which may include Your first and last name, username, the text of the feedback, and/or any other information such as the feedback submission date, the rating which you assigned to the App, etc., contained in or related to such feedback.

If You Provide Feedback to Us Directly		
Data Collected	Reasons for Processing	Lawful Basis
E-mail address	To respond to Your feedback and ask for Your consent	Consent
First and last name or username	To use Your feedback in our marketing activities	

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Text of the feedback	To use Your feedback in our marketing activities	
Data Storage / Retention		
We store the data for 6 years from feedback or the last communication on feedback.		

If You Provide Feedback Provided via Third-Party Products		
Data Collected	Reasons for Processing	Lawful Basis
First and last name or username	To use Your feedback in our marketing activities	Legitimate interest
Text of the feedback.	To use Your feedback in our marketing activities	
Data Storage / Retention		
We store the data for 2 years from feedback or the last communication on feedback.		

Event Registration and Completing Forms: You may be asked to provide Personal Data such as Your name, address, telephone number when You complete a form to make an enquiry, RSVP for an event or download information.

Any information gathered will only be used to complete Your request unless specifically stated on a particular form. Information provided by You will be handled in accordance with the relevant jurisdiction's data protection legislation.

DATA RECEIVED FROM THIRD PARTIES

We provide You with the possibility to link accounts from third-party services (Apple or Google) for integration and synchronization of data.

Data Collected	Reasons for Processing	Lawful Basis
Files on the cloud of the third-party service	Providing you with the functionality of the App	Contract Performance
Data Storage / Retention		
We do not store your files		

If you use the App for iOS or iPadOS, We may ask You for some information about yourself to help Us choose how to improve the App.

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Data Collected	Reasons for Processing	Lawful Basis
Field of activity	Improving the App for Our Users	Legitimate interest
Necessary functions		
Macbook possession		
Data Storage / Retention		
We store the data until You delete Your Account.		

We may receive some Personal Data from third parties. The amount of data collected, the purposes, and the lawful basis for processing is determined by the respective privacy documents of these parties.

Third Party	Privacy Documents
Stripe, Inc.	https://stripe.com/privacy

DATA SHARING WITH THIRD PARTIES

We can share your Personal Data with third parties without any harm to You and in full compliance with applicable law. In addition, we have implemented organizational and technical measures to ensure the security of Personal Data during data transfer to third parties. To share your Personal Data, we rely on the following lawful bases, depending on the case: consent, fulfilling legal obligations / compliance with the law, and contract performance.

Third Party	Description
Analytics tools	We use analytics tools to understand and promote our business.
Contractors	We cooperate with contractors to operate, develop, and improve the features and functionality of the Services, fulfill Your support requests, etc. In performing these services, third party contractors/suppliers may have access to Your Personal Data but are only authorized to process this Personal Data strictly on Our behalf, in accordance with Our instructions and bound by specific data processing agreements. We sign data processing agreements with them and impose security measures on them to protect Your Personal Data.
Services Our Website uses	We use third-party services to provide You with the functionality of the Website.
Services Our team uses	We use CRM systems, messengers, and other services in our organization to provide you with our services.

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State authorities, courts, law enforcement agencies, etc.	We may be obliged to transfer some of Your data to tax authorities, courts, law enforcement agencies, and other governmental bodies: • to comply with valid legal obligations, such as subpoenas, government request, search warrants, court order, or applicable law; • to prevent unlawful use of the Services; • to protect Our network, Services, devices and Users from the unlawful use of the Services; • to assert claims against or defend Ourselves from claims of third parties; • as part of mergers or acquisitions, provided that the prospective buyer or seller agrees to respect processing of Personal Data in a manner consistent with data protection legislation; • to help prevent or investigate fraud; • to outside auditors and regulators.
For a detailed list of the third-party recipients of your Personal Data, please email us at tabs@mytabs.app	

OUR USE OF COOKIES

To provide better service to Our Users, better understand User behavior, determine which parts of the Website You visit, and to address potential security hazards, We use cookies. A cookie is a small piece of information that a website stores on your web browser or your PC and can later retrieve. Cookies cannot be read by a website other than the one that sets the cookie. Most cookies only last through a single session or visit to Our Website. No cookie will contain information that will enable anyone to contact You via telephone, e-mail, or any other means. You can set up Your web browser to inform You when cookies are set or to prevent cookies from being set. Please note that if you choose to disable cookies on your browser, your use of the Website might be limited. For more information about cookies, visit our Cookie Policy.

ABOUT BEHAVIORAL DATA, PERSONALIZATION AND ADVERTISING

We strive to make the Services tailored to each User's preferences. To be able to provide our Users with the possibility to get the right Content via the App, we need to process Personal Data, in addition to aggregated and statistical data. In particular, We may process information about how our Users behave on the Services ("**Behavioral Data**") to be able to provide a personalized Content experience or to optimize the Services.

When processing Personal Data for to improve the Services, we do not need to know who the User is. This is why we anonymize the Behavioral Data as soon as technically possible without infringing on the purpose for which we collect it. When anonymized, Behavioral Data allows us to evaluate how large groups of Users respond to our Content and/or Services. This allows us to make our Services better and provide Content that Users are more likely to enjoy. Similarly,

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Behavioral Data may also be used to market the Services towards others, but not in a way that requires Us to identify an individual. For example, the data can be narrowed down, and hence anonymized, to geographical-only data that helps Us understand what kind of Content is popular where and ensure that the Content is marketed accordingly.

We also process data to be able to show advertisements that may be of interest for our customers, subject to applicable legal requirements. If advertisements are targeted by using data collected via cookies, it is possible at any time to reject or deny the use of cookies, which will lead to Us serving advertisements without any tailoring to the User's interests.

SECURING YOUR PERSONAL DATA

We use Amazon Web Services ("**AWS**") to host and store Personal Data collected by Us. AWS participates in the EU-US Data Privacy Framework, the UK Extension to the EU-US Data Privacy Framework, and the Swiss-US Data Privacy Framework*. Click [here](#) to learn more.

AWS maintains physical, electronic, and procedural safeguards in connection with the collection, storage, and disclosure of Personal Data. AWS complies with [ISO 27018](#), a code of practice that focuses on protection of Personal Data in the cloud. For more information, please visit <https://aws.amazon.com/compliance/data-privacy-faq/> and the AWS Privacy Notice, available [here](#).

CROSS-BORDER PERSONAL DATA TRANSFERS

MyTabs, LLC is headquartered in the United States of America. To the extent you submit any Personal Data from outside the United States to Us, by submitting such information to Us You agree to it being transferred to the United States of America and from the United States of America to the countries where Our service providers are located. As a result, Your Personal Data may be transferred out of the country in which You reside. We may share your Personal Data with such service providers, subject to obligations consistent with this Privacy Policy and any other appropriate confidentiality and security measures, and on the condition that these third parties use Your Personal Data only on Our behalf and pursuant to our instructions (please note that service providers may use other non-personal data for their own benefit). Cross-border data transfers only occur to countries that offer an adequate level of data protection or where necessary safeguards are in place to reach such adequate levels, such as the EU standard contractual clauses and binding corporate rules together with appropriate supplementary measures.

YOUR RIGHTS AS A DATA SUBJECT (GDPR)

The GDPR provides individual data subjects residing in the European Economic Area ("**EEA**") with certain rights, as detailed below. Similarly, individual data subjects outside the EEA hold rights similar to or equivalent under the GDPR pursuant to their home country's legislation, such as:

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1. **Right to Access:** You have the right to request an explanation of the processing of your Personal Data.
2. **Right to Rectification:** You have the right to change Your information if it is inaccurate or incomplete.
3. **Right to Erasure:** You can send us a request to delete your personal data from our systems. We will remove your Personal Data from Our systems unless otherwise provided by applicable law.
4. **Right to Restrict Processing:** You may partially or completely prohibit us from processing your personal data.
5. **Right to Data Portability:** You can request all the Personal Data that You provided to Us, as well as request to transfer data to another controller.
6. **Right to Object:** You may object to the processing of your Personal Data.
7. **Right to Withdraw Consent:** You can withdraw Your consent to Us processing Your Personal Data at any time.

You can exercise your GDPR privacy rights by contacting Us at tabs@mytabs.app. We will answer Your request within one (1) month. If you reside in the EEA and Your request is not satisfied, You can submit a complaint to your local Data Protection Authority (listing available [here](#)). If you live in the UK and Your request is not satisfied, you can file a complaint with the [Information Commissioner's Office](#).

U.S. RESIDENT DATA SUBJECT RIGHTS

You have the rights as a data subject equivalent to those under the GDPR generally, plus the following rights:

1. **Right to Opt-Out of Sales:** You have the right to opt out of the sale of personal data to third parties. *Applicable U.S. States: California, Colorado, Connecticut, Indiana, Iowa, Montana, Tennessee, Texas, Utah, Virginia*
2. **Right to Opt-Out of Certain Purposes:** You have the right to opt out of Personal Data for profiling and/or targeted advertising purposes. *Applicable U.S. States: Colorado, Connecticut, Indiana, Montana, Tennessee, Texas, Utah, Virginia*
3. **Right to Opt-In to the Processing Sensitive Data:** You have the right to opt in before the processing of sensitive data. *Applicable U.S. States: Colorado, Connecticut, Indiana, Montana, Tennessee, Texas, Virginia*
4. **Right to Opt-Out of the Processing Sensitive Data:** You have the right to opt out of the processing of sensitive data. *Applicable U.S. States: California*
5. **Right Against Automated Decision-Making:** You have the right not to be subject to a decision based solely on automated means if the decision produces legal effects concerning You or significantly affects You in a similar way. *Applicable U.S. States: California, Colorado, Connecticut, Indiana, Iowa, Montana, Tennessee, Texas, Virginia*

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6. **Private Right of Action:** You have the right to seek damages from a data controller for statutory violations. *Applicable U.S. States: California*

If You wish to (i) exercise your GDPR/state-specific data privacy rights, or (ii) your State of residence is not listed in this Section but You wish to exercise your data privacy rights, please email us at tabs@mytabs.app. We will answer Your request within thirty (30) to sixty (60) days, depending on applicable state and legislative requirements. If Your complaint is not satisfied, you can submit a complaint with the Federal Trade Commission.

ADDITIONAL RIGHTS UNDER THE CALIFORNIA CONSUMER PRIVACY ACT

1. **Do Not Sell My Personal Information:** California residents have the right under the California Consumer Privacy Act (“**CCPA**”) to opt out of the “sale” (as such term is defined by the CCPA) of their Personal Data by a company governed by CCPA. Our Users that are California residents may opt out of any future sale of their Personal Data. If You wish to record Your preference for Us not to sell Your data in the future, please email us at {EMAIL ADDRESS}.
2. **Do Not Track Me:** California residents visiting the Website may request that We do not automatically gather and track information about their online browsing movements across the Internet. These requests are typically made through web browser settings that control signals or other mechanisms that allow You to exercise Your choices regarding collecting Personal Data about Your online activities over time and across third-party websites or online services. While We currently are unable to honor these requests, We may modify this Privacy Policy as our abilities change.

If you have any questions about this Privacy Policy or wish to contact MyTabs in connection with any of the above information, please contact us at tabs@mytabs.app .